

SILVERCREEK TOWNHOMES ASSOCIATION

SCHEDULE of FINES and DEFINITIONS

1. **Violation.** A "**Violation**" is defined as the failure of an Owner or Guest of an Owner to comply with the provisions of the Governing Documents, which include the Declaration, Bylaws, Articles of Incorporation and the current, published Rules and Regulations, which will be collectively referred to as the "**Rules**" or "**Rule.**"
2. **Notice of Violation.** The "**Notice of Violation**" is the written notice from the Board of Trustees issued to an Owner evidencing the nature of the Violation and right to cure.
3. **Notice of Fine.** The "**Notice of Fine**" is the written notice from the Board of Trustees issued to an Owner as the result of a Continuing Violation or a Repeat Violation. The Notice of Fine will reflect the nature and amount of the Fine being assessed in accordance with the Schedule of Fines, including Owner's right to appeal.
4. **Types of Violations:**
 - a. **Initial Violation.** An "**Initial Violation**" is the Violation of any Rule or Rules occurring within a one (1) year period, in which no other Notice of Violation was issued for a similar Violation.
 - b. **Continuing Violation.** A "**Continuing Violation**" is any Violation that remains uncured or unresolved following the Cure Period set forth in the Notice of Violation.
 - c. **Repeat Violation.** A "**Repeat Violation**" is a Violation of the same Rule for which a Notice of Violation has been previously issued and occurs within one (1) year of said Notice of Violation.

5. Fines:

Schedule of Fines

Nature of Violation	Action Taken
Any violation of the Rules, excepting a Violation of Lease Restrictions noted below.	Initial Violation: Notice of Violation is sent as a "courtesy notice," with right to cure. No Fine is assessed. Continuing Violation: \$50 Initial Fine and \$20 per day from the date of Notice of Fine until Violation is cured and all fines are paid in full. Repeat Violation: \$200 Fine and \$50 per day from the date of Notice of Fine until Violation is cured and all fines are paid in full.
Violation of Lease Restrictions	Initial Violation: 50% of the annual assessment in effect as of the date of Violation, plus \$50 per day from Notice of Fine until Violation is cured and all Fines are paid. Repeat Violation: 50% of the annual assessment in effect as of the date of Repeat Violation, plus \$1,000, plus \$100 per day from Notice of Fine until Violation is cured and all Fines are paid.
Violation of Pool Rules	In addition to any Fines imposed above, deactivation of key fob until all Fines are paid.

6. **Request for Hearing.** An Owner who is assessed a Fine may request an informal hearing before the Board of Trustees to dispute the Fine. A Request for Hearing must be made within 30 days of receipt of a Notice of Fine. A Request for Hearing must be in writing and hand delivered to a member of the Board of Trustees, or sent via certified mail to:

Silver Creek Homeowners Association
1732 W. 540 N. #163
St. George, UT 84770